FORM OF AGREEMENT

Preliminary Agreement entered in to this the……..day of…….

in the year Two thousand and twenty four between the Assistant Engineer, LID & EW, Chittur thathamangalam municipality for and on behalf of the Governor of Kerala

(hereinafter called the Government) of the one part and Sri. …….. . . . . .

…….. . . .

(Here enter full name and address of the contractor) (hereinafter called the Contractor) of the other part for the execution of the agreement as well as the execution of the work……

…… . . . . . .

…….

WHEREAS the Government invited tenders for the work…….

…….

(H.E name of the work) by Notification No……dated……..

in the……

AND NOW WHEREAS para 13 of the notice stated as follows:

CONTRACTOR ASSISTANT ENGINEER

Before commencing work, or within a week after the date when the acceptance of the tender has been intimated to him, the tenderer shall deposits sum sufficient to make up the balance of 5 percentage of the probable value of contract, which together with the amount of earnest money deposited shall be treated as security for the proper fulfillment of the same and shall executed an agreement for the work in the PWD schedule form. If he fails to do this or in the case of PW contracts maintain specified rate of progress(to be specified in each case in the tender schedule) the earnest money and security deposit shall be forfeited to Government and fresh tenders shall be called for the matter otherwise disposed off. If as a result of such measures due to the default of the tender to pay the requisite deposit, sign contracts or take possession of the work any loss to Government result the same will be recovered from his as arrears of revenue, but should it be a saving to Government, the original contractor shall have no claim whatever to the differences, Recoveries on this or any other account will be made from the sum that be due to the contractor on this or any other subsisting contract or under the Revenue Act or otherwise the Government may decide.

NOW THEREFORE THESE PRESENTS WITNESS and it is mutually agreed as follows

1 The terms and conditions for the said contract having been stipulated in the said tender from to which the contractor has agreed copy of which is hereto appended which forms part of this agreement, it is agreed that the terms and conditions stipulated therein shall bind the parties to this agreement except to extend to which they are abrogated or altered by express and conditions herein agreed to and in which respect the express provisions herein shall supersede those of the said tender form.

2 The Contractor hereby agrees and undertake to perform and fulfill all the operations and obligations connected with execution of the above said work, if awarded in favour of the Contractor

3 If the Contractor does not forwarded to execute the original agreement after the said work is awarded and selection notice issued in his favour of commits breach of any of the conditions of the contract as stipulated in clause 13 of the Notice Inviting Tenders as quoted above within the period stipulated them the Government may re-arrange the work otherwise or get it done departmentally at the risk and cost of the contractor and the loss so sustained by the Government can be realized from the contractor under the Revenue Recovery Act as if arrears of land revenue as assessed quantified and fixed by an adjudicating authority consisting of the Secretary(Public Work)Chief Engineer (Arbitration) and Chief Engineer(Administration) or any other officer of officers authorized by Government in this behalf, taking in to consideration the prevailing Public Work Department rates and after giving due Notice to the Contractor. The decision taken by such authority, officer shall be final and conclusive and shall be binding on the contractor.

4 The contractor agrees that any amount found due to the Government under or by virtue of this agreement shall be recoverable from the contractor from his EMD and his properties, movable and immovable as arrears of land revenue under the provisions of Revenue Recovery Act for the time being in course or in any other manner as the Government may deed fit in this regard.

5 Clause No.5 as per GO(MS)No.2/2005/PWD dated:7-1-2005. The Contractor further assures that it is clearly understood that the settlement of claims either by part bills or by final bills will be made only according to the availability of budget provision and allotment of funds of account in which the work is sanctioned and arranged and also subject to the seniority of such bills. No claims for interest or for damages whatsoever shall be made for the belated settlement of Claims of bills

IN WITNESS WHEREOF Sri……...

For and on behalf of the Governor and…….

The contractor have set their hands on the day and year first above written

Signed by Sri……...

In the present of the witnesses

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Signed and delivered by .....(the Contractor) in the presence of witnesses.

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